

25CHCV03570 25CHCV03570

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-21

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PETITION FOR
APPROVAL OF MINOR'S COMPROMISE

Petition filed on: July 22, 2026.

MOVING PARTY: Meerim Wisely, as Guardian Ad Litem for Shanya Wisely.

RESPONDING PARTY: None.

NOTICE: OK.

RELIEF REQUESTED: Petitioner seeks approval of the compromise of minor Shanya Wisely's claim.

RULING: Granted. OSC re Deposit into the Blocked Account is set for November 16, 2026, at 8:30 a.m. in Department F-46.

BACKGROUND/DISCUSSION

Petitioner Meerim Wisely ("Petitioner"), as parent and guardian ad litem for minor claimant Shanya Wisely ("Claimant"), petitions the

Court to approve the compromise of Claimant's claims in this action. Claimant is 11 years old. (Pet., ¶2, p. 1.) Petitioner has completed Judicial Council form MC-350, signed by Petitioner, and submitted proposed forms MC-351 and MC-355.

On August 11, 2026, the Court continued the hearing to September 21, 2026, to permit service of the Petition and filing of corrected proposed orders. (8/11/26 Minute Order.) On August 28, 2026, Petitioner filed a proof of service, and corrected proposed forms MC-351 and MC-355 reflecting the continued hearing date.

Petitioner seeks Court approval for a settlement providing \$6,000.00 to resolve Claimant's claims against Defendant Richard Alan Newton. (Pet., ¶10(a)-(b), p. 3.) The settlement is part of a \$100,000.00 policy-limits settlement apportioned among the four plaintiffs based on their respective injuries and special damages. Claimant receives \$6,000.00. (Pet., Att. 11b(6).) Counsel states that no additional liability insurance is available. (Pet., Att. 13a, Beck Decl., ¶¶5-6.)

This is a personal injury action arising from a May 15, 2024 motor vehicle collision at The Old Road and Henry Mayo Drive in Castaic. (Pet., ¶4, p. 2.) Claimant was a passenger in a vehicle driven by Petitioner when Defendant made a left turn in front of their vehicle, causing a collision. (Pet., ¶5, p. 2.) Claimant sustained a thoracic sprain and segmental and somatic dysfunction of the cervical, thoracic, and lumbar spine and rib cage. (Pet., ¶6, p. 2.) Claimant received chiropractic evaluation and follow-up treatment. (Pet., ¶7, p. 2.)

The petition states that Claimant has completely recovered and has no permanent injuries. (Pet., ¶8(a), p. 2.) Claimant's August 14, 2024 treatment record states that she reported 100 percent improvement, had reached maximum therapeutic benefit, was asymptomatic, had no remaining residuals, and required no further active treatment. (Pet., Att. 7.)

Petitioner requests approval of \$1,500.00 in attorney's fees, \$103.00 in costs, and \$800.00 in medical expenses, leaving a net recovery of \$3,597.00 for Claimant. (Pet., ¶¶12-13, 15-16, pp. 4-6.) Counsel's declaration states that the retainer agreement provides for a higher contingency fee depending on the stage of the case, but counsel reduced the requested fee to 25 percent because Claimant is a minor. (Pet., Att. 13a, Beck

Decl., ¶13.) The Court finds the requested fees and costs reasonable.

Petitioner proposes that Claimant's net recovery of \$3,597.00 be deposited into a blocked account at First Bank, 4040 Atlantic Avenue, Long Beach, California 90807. (Pet., ¶18(b)(2), p. 8; Pet., Att. 18b(2).) The proposed MC-351 and MC-355 are consistent with the petition's requested blocked-account disposition.

CONCLUSION

The petition is granted. The Court will sign the proposed forms MC-351 and MC-355. The net settlement proceeds of \$3,597.00 shall be deposited into the blocked account identified therein.

Order to Show Cause Re: Deposit into the Blocked Account is scheduled for November 16, 2026, at 8:30 a.m. in Department F-46.